

Vietnam Conditional Business Sector Review Checklist 2026 for Foreign Investors

A practical pre-entry, expansion and M&A review tool for foreign-invested companies in Vietnam

Use this checklist to identify whether a proposed or existing business activity may still require foreign ownership review, conditional business assessment, IRC/ERC amendment, sector-specific permits, technical standards, or post-licensing compliance.

Prepared as a general information checklist based on NQ 66.17/2026/NQ-CP and related Vietnam market-entry considerations. Project-specific legal advice is required before implementation.

1. Executive use note

Vietnam is reducing certain conditional business sectors from 1 July 2026. For foreign investors, the practical impact is not simply easier market entry. The real question is whether the intended activity remains restricted, conditional, subject to foreign ownership limitations, controlled by technical standards, or exposed to post-inspection compliance.

Board-level takeaway: treat the reform as a trigger for legal feasibility review, licensing scope review, and post-licensing compliance planning.

Review area	Business question	Why it matters
Market entry	Can the foreign investor conduct this activity in Vietnam?	Incorrect assumptions may delay IRC/ERC approval or require restructuring.
Expansion	Is the new activity already covered by existing licences?	Unlicensed expansion may trigger amendment, tax, customs or inspection risk.
M&A	Does the target hold valid and sufficient licences?	Hidden permit gaps may affect valuation, conditions precedent and post-closing remediation.
Operations	Are technical standards and post-inspection controls satisfied?	A reduced condition may still create operational compliance obligations.

Source note

NQ 66.17/2026/NQ-CP was issued by the Government of Vietnam on 15 May 2026 and provides a list of 142 conditional business sectors from 1 July 2026 to 28 February 2027, subject to replacement and transitional rules under the Resolution. Source: Thu Vien Phap Luat summary of NQ 66.17/2026/NQ-CP.

2. Investor and activity profile

Complete this section before analysing the legal position. In practice, the same business activity may have different legal consequences depending on investor nationality, ownership structure, location, products, technical process, customers and revenue model.

Check	Review item	Notes / evidence
[]	Identify the foreign investor, jurisdiction of incorporation and ultimate beneficial owner.	
[]	Confirm whether the investor is an individual, corporation, fund, holding company or operating company.	
[]	Describe the proposed business activity in plain commercial language.	
[]	Map the activity to expected Vietnam Standard Industrial Classification or registered business lines.	
[]	Identify whether the project involves manufacturing, services, trading, import-export, distribution, e-commerce, logistics, education, healthcare, real estate, construction, environment, chemicals, food, data or regulated technology.	
[]	List products, services, customers, suppliers and expected revenue flows.	
[]	Confirm proposed location: province, industrial park, office, warehouse, factory or project site.	

Practical note: do not rely only on broad descriptions such as “consulting”, “trading” or “technology services”. Licensing authorities and post-inspection teams usually examine the actual activity.

3. Conditional business and foreign ownership review

This section determines whether the activity remains sensitive for foreign investment or subject to business conditions, even after the 2026 simplification.

Check	Review item	Notes / evidence
[]	Check whether the activity appears in the 2026 list of conditional business sectors.	
[]	Check whether the activity is restricted or prohibited for foreign investors under investment law, treaties, sector rules or authority practice.	
[]	Confirm whether 100% foreign ownership is permitted, or whether a Vietnamese partner, special approval or additional conditions may apply.	
[]	Review whether the activity requires professional licences, sub-licences, certificates, practice permits, technical standards or operating conditions.	
[]	Identify whether the reduction of a business condition shifts the risk to post-inspection, standards compliance or reporting obligations.	
[]	Check whether any existing licence remains valid until expiry and whether renewal will follow the new rules.	
[]	Confirm whether current ERC business lines and IRC project objectives are broad enough for actual operations.	

Risk level	Indicator	Recommended action
Low	Open activity, no obvious sector permit, standard office/service model.	Confirm business line and post-licensing checklist.
Medium	Activity reduced from conditional list or unclear sector classification.	Obtain legal feasibility note before filing or expansion.
High	Regulated sectors, foreign ownership questions, technical standards, factory, land, environment or M&A target gaps.	Conduct full legal, tax and licensing review before commitment.

4. Licensing, permits and post-licensing controls

A reduced conditional business list does not automatically remove IRC/ERC, sector approvals, tax registration, labour compliance, customs readiness, environmental review or technical standards.

Check	Review item	Notes / evidence
[]	Confirm whether the project requires an Investment Registration Certificate (IRC) and Enterprise Registration Certificate (ERC).	
[]	Check whether an IRC amendment is required for new activities, products, location, capital, timeline or expansion.	
[]	Review sector-specific permits, including trading, logistics, warehouse, customs, education, healthcare, construction, environment, food, chemicals or other regulated activities.	
[]	For manufacturing: review industrial land, environmental obligations, fire safety, construction permits, machinery import, customs, labour and occupational safety.	
[]	For service businesses: review professional qualifications, operational conditions, data, e-commerce, advertising, consumer protection and contract requirements where relevant.	
[]	For tax and finance: check DICA, capital contribution, foreign loans, VAT, foreign contractor tax, transfer pricing and profit remittance.	
[]	Prepare a post-licensing compliance calendar with monthly, quarterly, annual and event-based obligations.	

For factory setup, ECOVIS recommends treating the project as an implementation sequence: investment licensing -> land/factory lease -> environmental/fire/construction review -> tax and banking setup -> customs and labour readiness -> production launch.

5. Trigger events requiring legal review

Trigger	Review question	Output to prepare
New company setup	Can the foreign investor enter this activity and at what ownership ratio?	Market entry feasibility memo and IRC/ERC roadmap.
New product/service	Is the activity within the current licensed scope?	Business line and sector-permit check.
Factory expansion	Do land, environment, fire safety, construction and customs approvals support expansion?	Factory setup / expansion compliance roadmap.
M&A transaction	Does the target hold sufficient and valid licences?	Licensing due diligence and CP remediation list.
Licence expiry	Do transitional rules allow continued use and how will renewal work?	Renewal / replacement action plan.
Authority inspection	Can the company evidence compliance with technical and post-licensing obligations?	Compliance file and inspection response pack.

Recommended ECOVIS next step

Request a Vietnam Conditional Business Sector Review. ECOVIS Vietnam Law can review the proposed or existing business activity, check foreign ownership and conditional-sector exposure, map IRC/ERC implications, identify sector-specific permits, and prepare a practical action list for market entry, expansion or M&A.

Contact: vietnam@ecovislaw.vn

Website: www.ecovislaw.vn

Advisor: Attorney Vu Manh Quynh, Managing Partner, ECOVIS Vietnam Law

Disclaimer

This checklist is for general information only and should not be treated as legal, tax, accounting or investment advice. Requirements may vary depending on sector, location, project scale, ownership structure, authority practice and transitional rules. Foreign investors should obtain project-specific advice before making investment, licensing, tax, labour, land, operational or transaction decisions.